

Puneet Bakshi vs Sunila Bakshi on 3 January, 2019

Author: Sandeep Sharma

Bench: Sandeep Sharma

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr.MMO No. 102 of 2018

Date of Decision No.3.01.2019

Puneet Bakshi

.....Petitioner

Versus

Sunila Bakshi

.....Respondent

Coram:

Hon'ble Mr. Justice Sandeep Sharma, Judge.

Whether approved for reporting? 1 Yes.

For the Petitioner:

Mr. Sat Prakash, Advocate.

For the Respondent: Mr. Vishal Panwar, Advocate.

Sandeep Sharma, Judge (oral):

By way of present petition filed under Article 227 of the constitution of India read with Section 482 of the Code of Criminal Procedure, challenge has been laid to judgment dated 4.12.2017, passed by learned District Judge, Chamba, District Chamba, H.P., in Criminal Appeal No.24 of 2016, affirming the order dated 13.5.2016, passed by learned Chief Judicial Magistrate, Chamba, District Chamba,

H.P., in Case No 21-I of 2012, whereby learned trial Court while allowing the petition filed under Section 12 and 18 of the Protection of Women from Domestic Violence Act, 2005 (hereinafter referred to as the Whether the reporters of the local papers may be allowed to see the judgment?

"D.V. Act"), directed the petitioner-husband to provide one well furnished room with WC and kitchen in the locality and to pay .

maintenance allowance to the tune of Rs. 8000/- per month to the respondent-wife from the date of order i.e. 13.5.2016, as interim maintenance.

2. Briefly stated facts, as emerge from the record are that marriage inter se petitioner-husband and the respondent-wife was solemnized on 25th February, 2008 at village Mehla, Tehsil and District Chamba, H.P., as per Hindu Rites and Customs prevalent in the illaqua. However, fact remains that due to certain differences, parties referred hereinabove, were unable to live together for long. In the year, 2011, respondent-wife left her matrimonial house and started living with her parents at her parental house. On 16th January, 2012, respondent-wife filed petition under Section 12 and 18 of D.V. Act, praying therein for maintenance as well as accommodation to live. Vide interim order dated 16.3.2012, learned Chief Judicial Magistrate directed the petitioner to provide one well furnished room with WC and kitchen in the locality and subsequently vide order dated 13.5.2016 while confirming its interim order dated 16.3.2012, also directed the petitioner-husband to pay maintenance allowance to the tune of Rs. 8000/- per month to the respondent-wife from the date of the order.

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3. Being aggrieved and dissatisfied with the aforesaid order passed by the learned Chief Judicial Magistrate, Chamba, petitioner-husband preferred an appeal under Section 29 of the Protection of the Women from Domestic Violence Act, 2005 in the Court of learned District Judge, Chamba, District Chamba, H.P, which came to be dismissed vide judgment dated 4 th December, 2017, as a consequence of which, order dated 13th May, 2016, passed by learned Chief Judicial Magistrate, Chamba came to be upheld. In the aforesaid background, petitioner-husband approached this Court in the instant proceedings, praying therein to set-aside the judgment passed by the learned District Judge, whereby he upheld the order dated 13th May, 2016, passed by the learned Chief Judicial Magistrate, Chamba, granting maintenance in favour of the respondent-wife.

4. During the proceedings of the case, this Court having taking taken note of the nature of controversy inter se parties, deemed it fit to summon both the parties to the Court. After having interacted with the parties, this Court found that there is no possibility, if any, of rapprochement inter se parties and their relation is beyond repair, however on the persuasion of this Court, parties agreed to sit with each other, so that some possibility, if any, of amicable settlement inter se them, is explored. On .

29.11.2018, learned counsel representing the parties informed this Court that parties have agreed to resolve their dispute amicably inter se them, whereby they have mutually agreed to file joint petition under Section 13-B of the Hindu Marriage Act, praying therein for dissolution of marriage by way of mutual consent. This Court was also informed that as per settlement, petitioner-husband, namely Puneet Bakshi has agreed to pay a sum of Rs. 10 lac, as permanent alimony to the respondent-wife, namely Sunila Bakshi. Cheque amounting to Rs. 5 lac came to be handed over to respondent-wife in the Court itself on 29.11.2018 in terms of the agreement arrived inter se parties, whereas petitioner-husband agreed to pay remaining amount of Rs. 5 lac within a period of four weeks. On that date, Mr. Vishal Panwar, learned counsel representing the respondent-wife stated that a sum of Rs. 2, 40,000/-, is also payable to the respondent-

wife on account of arrears towards maintenance awarded by the learned Courts below under various provisions of law. Mr. Sat Prakash, learned counsel representing the petitioner-husband, on instructions of his client, stated that he is ready and willing to pay a sum of Rs. 1 lac in toto qua the areas, if any, which offer was accepted by the respondent-wife. With a view to enable the petitioner-husband to pay remaining amount, matter was .

adjourned for today i.e. 3.01.2019.

5. Today, during the proceedings of the case, Mr. Sat Prakash, learned counsel representing the petitioner-husband, handed over cheque No.671804, dated 3.1.2019, amounting to Rs. 6 lac(five lac balance amount towards permanent alimony and Rs. One lac arrears of maintenance) to the respondent-wife, who is present in Court. He stated that since entire amount towards alimony now stands paid, learned Court below, where the divorce petition having been filed by the petitioner-husband is pending, can be ordered to pass decree of dissolution of marriage by way of mutual consent.

6. Mr. Vishal Panwar, learned counsel representing the respondent-wife, on instructions of his client, stated that she has no objection in case the present petition is disposed of with a direction to the learned Court below to dispose of the divorce petition having been filed by the petitioner-husband, as has been prayed by learned counsel for the petitioner-husband.

7. Though, as has been recorded hereinabove, parties have resolved to settle their dispute amicably, but this Court also recorded the statements of both the parties on oath in the Court, to enable the learned Court below to pass appropriate orders, if any, on the petition to be filled by both the parties jointly under .

Section 13-B of Hindu Marriage Act. Both petitioner-husband and respondent-wife on oath stated before this Court that they of their own volition and without there being any external pressure have entered into the compromise inter se each other, whereby they have agreed that they would be filing joint petition under Section 13-B of the Hindu Marriage Act, in the Court of learned Additional

District Judge, seeking therein dissolution of marriage by way of mutual consent. Smt. Sunila Bakshi, respondent-wife categorically stated before this Court that she has received a sum of Rs. 10 lac towards permanent alimony and as such, she has no claim pending against the petitioner-husband. She further stated that she will not claim any amount now from the petitioner-

husband, who has also given her Rs. One lac towards arrears of maintenance in terms of order dated 29.11.2018, passed by this Court. She also stated that as per the terms and conditions, she would be withdrawing all the cases registered at her behest against the petitioner-husband all various Courts of law.

Petitioner-husband also stated on oath that he alongwith respondent-wife would be filling joint petition in the pending divorce petition filed by him, to enable the learned Court below to pass decree of dissolution of marriage by mutual consent. Their statements are taken on record.

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8. Consequently, in view of the above, the present petition is allowed. The judgment dated 4.12.2017, passed by learned District Judge, Chamba, District Chamba, H.P., in Criminal Appeal No.24 of 2016 and order dated 13.5.2016, passed by learned Chief Judicial Magistrate, Chamba, District aside.

r to Chamba, H.P., in Case No 21-I of 2012, are quashed and set-

9. Both the parties, who are present in Court undertake to file joint petition under Section 13-B of the Hindu Marriage Act, within a period of one week. Learned Court below is directed to decide the joint petition having been filed by both the parties under Section 13-B of the Hindu Marriage Act, expeditiously. Both the parties, who are present in Court, undertake to remain present before the learned Court below at the time of presentation of joint petition, so that one date is fixed by the learned Court below for recording their statements, which has been otherwise recorded by this Court in the instant proceedings, which can also be taken note by the learned Court below while passing the order on the joint petition filed under Section 13-B of the Hindu Marriage Act. Record, if any, be sent forthwith.

Accordingly, the present petition stands disposed of in the aforesaid terms alongwith pending application(s), if any.

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Interim order granted by this Court on 24.3.2018, is vacated.

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(Sandeep Sharma), Judge 3rd January, 2019.

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